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|   |                                             | <p>The Case Management Conference scheduled for July 10, 2026 is <b>VACATED</b>. An Status Conference re Arbitration is scheduled for June 11, 2027, at 9:30 a.m.</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 4 | The Irvine Company LLC v. Taquero Taco, LLC | <p>Plaintiff The Irvine Company LLC's unopposed motion for leave to file the Second Amended Complaint is <b>GRANTED</b>.</p> <p>The motion complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (Code of Civ. Proc. § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [applying "a policy of great liberality in permitting amendments"]; see also Declaration of Ernie Zachary Park ¶¶ 4-7.)</p> <p>The Court deems the filing of the Second Amended Complaint on March 17, 2026 to be proper. (ROA 141.) Plaintiff shall serve the SAC in accordance with Code of Civil Procedure section 415.10 et. seq.</p> <p>Counsel for Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                              |
| 5 | Cammack v. General Motors LLC               | <p>Before the Court is the Motion For Compliance Pursuant to C.C.P. § 871.26, filed on 3/23/26 by Defendant General Motors LLC ("GM").</p> <p>Plaintiff Chad Cammack ("Plaintiff") asserts that he has now complied with the disclosure requirements at issue, which GM does not dispute on reply. The Motion therefore appears to be <b>MOOT</b>, except as to the issue of sanctions.</p> <p>Sanctions are clearly warranted here under C.C.P. § 871.26(j). Although Plaintiff asserts that there was some early uncertainty as to the application of §871.26 due to the opt-in provision that became effective on 4/1/25, there was no valid basis for uncertainty by the time GM filed its responsive pleading on 7/11/25. Plaintiff thus had 60 days from 7/11/25 to comply with C.C.P. § 871.26(f) and (g). Plaintiff failed to do so. (Lasater Decl., ¶ 6; Perks Decl. ¶ 7, Ex. 1.) Sanctions in the amount of \$1,500 are therefore imposed under C.C.P. § 871.26(j), on Strategic Legal Practices, APC, to be paid to GM, through its counsel of record, within 15 days.</p> <p>GM is to give notice of this ruling.</p> |
| 6 | Johnson v. Hyundai Motor America            | <p>The Motion to Compel Binding Arbitration, filed on 3/16/26 by Defendant Hyundai Motor America (HMA) is <b>DENIED</b>.</p> <p>HMA has failed to show that the parties entered into a valid agreement to arbitrate here. HMA asserts that Plaintiff Alyssa Johnson (Plaintiff) agreed to arbitrate because HMA included an arbitration provision in its "Owner's Handbook &amp; Warranty Information" (Warranty) for the vehicle. (Ameripour Decl., ¶ 4 and Ex. 2.) But HMA has not shown that the Warranty reflects an actual agreement with Plaintiff: HMA does not present any</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|   |                                  | <p>evidence to show that Plaintiff signed or accepted or saw or was informed of the arbitration provision in the Warranty. In contrast, Plaintiff specifically attests that she did not see the arbitration agreement or even know of it when she bought the vehicle. (Johnson Decl., ¶¶ 2-14.)</p> <p>HMA argues that equitable estoppel applies, as Plaintiff's claims rely on the Warranty. But an essential element of any contract is mutual assent. (<i>Donovan v. RRL Corp.</i> (2001) 26 Cal.4th 261, 270.) A warranty is not a traditional contract: it is effectively a unilateral promise to the consumer. (<i>Gavaldon v. DaimlerChrysler Corp.</i> (2004) 32 Cal.4th 1246, 1258; <i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144 Cal.App.4th 824, 830.) Equitable estoppel thus cannot apply in this context. Nor are Plaintiff's claims clearly dependent upon the Warranty. (See <i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1133 [warranty claims arise from a statutory scheme; unless properly disclaimed, every retail sale of consumer goods includes the implied warranty that the goods are merchantable], in addition to any express warranty provided by the manufacturer.) HMA has thus failed to show that equitable estoppel applies here.</p> <p>As HMA has failed to establish that an enforceable arbitration agreement exists between HMA and Plaintiff, the Motion is <b>DENIED</b>.</p> <p>HMA's Request for Judicial Notice is <b>GRANTED</b> under Ev. Code §452(d), as to the existence of the record.</p> <p>Counsel for HMA is to give notice of this ruling.</p> |
| 7 | Providence Capital Funding, Inc. | <p>Before the Court is a motion for attorney fees filed by plaintiff Providence Capital Funding, Inc. against defendants Rona Health, LLC (Rona), Pietz Enterprises, LLC (Pietz Enterprises), and Robert Pietz (Pietz)(collectively, Defendants) For the reasons set forth below, the motion is <b>GRANTED</b> in the reduced amount of \$40,503.</p> <p>Contractual attorney's fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code § 1717, subd. (a),(b).) With judgment entered in favor of Plaintiff and against Defendants,, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision in the parties contracts. (Declaration of Adeline Tungate, Exs. 1, 2; ROA 185.)</p> <p>The question becomes whether the amount of attorney fees sought by Plaintiff at \$53,206.06 is reasonable. Generally, courts employ the lodestar method to determine if attorney's fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney's fees is not entitled to all hours</p>                                                                                                                                                                                                                                                                                                                                                               |